

1 AN ACT relating to deficient administrative regulations and declaring an
2 emergency.

3 *Be it enacted by the General Assembly of the Commonwealth of Kentucky:*

4 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 13A IS CREATED TO
5 READ AS FOLLOWS:

6 *(1) The General Assembly finds that the proposed ordinary amendment to 907 KAR*
7 *23:010, Outpatient Pharmacy Program, was found deficient pursuant to KRS*
8 *13A.030, on or after March 28, 2025, and before April 15, 2026, as evidenced by*
9 *the records of the Legislative Research Commission.*

10 *(2) Contrary provisions of any section of the Kentucky Revised Statutes*
11 *notwithstanding:*

12 *(a) If the proposed ordinary amendment referenced in subsection (1) of this*
13 *section has not been adopted on or before the effective date of this Act, the*
14 *proposed ordinary amendment shall expire as of the effective date of this*
15 *Act; or*

16 *(b) If the proposed ordinary amendment referenced in subsection (1) of this*
17 *section has been adopted on or before the effective date of this Act, the*
18 *administrative regulation, including any subsequently filed amendments,*
19 *shall be null, void, and unenforceable as of the effective date of this Act.*

20 *(3) Contrary provisions of any section of the Kentucky Revised Statutes*
21 *notwithstanding, the administrative body shall be prohibited from promulgating*
22 *an administrative regulation that is identical to, or substantially the same as, the*
23 *proposed amendment referenced in subsection (1) of this section for a period*
24 *beginning on January 6, 2026, and concluding on June 1, 2027.*

25 *(4) The proposed amendment referenced in subsection (1) of this section shall be*
26 *available to the public, in the office of the Legislative Research Commission's*
27 *regulations compiler.*

1 ➔SECTION 2. A NEW SECTION OF KRS CHAPTER 13A IS CREATED TO
2 READ AS FOLLOWS:

3 (1) The General Assembly finds that the following emergency administrative
4 regulations were found deficient pursuant to KRS 13A.030, on or after March 28,
5 2025, and before April 15, 2026, as evidenced by the records of the Legislative
6 Research Commission:

7 (a) 804 KAR 13:020E, Tobacco, nicotine, or vapor product license application
8 forms; and

9 (b) 804 KAR 13:030E, Causes for denial of tobacco, nicotine, or vapor product
10 license.

11 (2) Contrary provisions of any section of the Kentucky Revised Statutes
12 notwithstanding, the emergency administrative regulations referenced in
13 subsection (1) of this section shall be null, void, and unenforceable as of the
14 effective date of this Act.

15 (3) Contrary provisions of any section of the Kentucky Revised Statutes
16 notwithstanding, the administrative body shall be prohibited from promulgating
17 administrative regulations that are identical to, or substantially the same as, the
18 emergency administrative regulations referenced in subsection (1) of this section
19 for a period beginning on January 6, 2026, and concluding on June 1, 2027.

20 (4) The emergency administrative regulations referenced in subsection (1) of this
21 section shall be available to the public, in the office of the Legislative Research
22 Commission's regulations compiler.

23 ➔Section 3. Whereas it is crucial that the Commonwealth's regulatory policy
24 reflect the statutory intent of the General Assembly, an emergency is declared to exist,
25 and this Act takes effect upon its passage and approval by the Governor or upon its
26 otherwise becoming a law.